

Uttarakhand Water Management and Regulatory Act, 2013

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State of Uttarakhand - Act

Uttarakhand Water Management and Regulatory Act, 2013

UTTARAKHAND

India

Uttarakhand Water Management and Regulatory Act, 2013

Act 24 of 2013

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Uttarakhand Water Management and Regulatory Act, 2013

(Uttarakhand Act

No. 24 of 2013

)

Last Updated 12th March, 2020

An Act To provide for the establishment of the Uttarakhand water Management and Regulatory Commission Bill to Regulate water resources within the State, facilitate and ensure judicious, equitable and sustainable management, allocation and optimal utilization of water resources of environmentally, economically sustainable development of the State, fix the rates for water use for agriculture, industrial, drinking, power and other purposes and cess on land benefited by flood protection and drainage works from the owners of lands benefited through appropriate regulatory instruments according to State Water Policy and matters connected therewith or incidental thereto.

It is hereby enacted in the Sixty-fourth Year of the Republic of India as follows :-

Chapter - I Preliminary

1.

Short title, extent commencement and applicable.

(1)

This Act may be called the Uttarakhand Water Management and Regulatory Act, 2013.

(2)

It extends to the whole of the State of Uttarakhand.

(3)

It shall come into force on such date as the State Government may by notification in the Gazette appoint in this behalf.

(4)

The provisions of this Act shall apply notwithstanding anything to the contrary contained in Northern India Canal and Drainage Act, 1873 or the Uttar Pradesh Water Supply and Sewerage Act, 1975 (as implemented in the State of Uttarakhand) or in any other law for the time being in force.

2.

Definitions.

- In this Act, unless the Context otherwise requires,-

(a)

"Area of Operation" means the entire geographical area of Uttarakhand in which water is managed and supplied to different use sectors by public or private agency or the area which is benefited by flood protection and drainage works;

(b)

"Basin" means the area of land around a river from which streams run down into it;

(c)

"Bulk water Entitlement" Means the Volumetric authorization given by the [Commission]

[Substituted words 'commission' by section 2 of Act no. 03 of 2016 of the Uttarakhand.]

to a share of water resource by a project, river system or storage facility, for specific period of time as specifically provided in the order granting the entitlement;

(d)

"Category of uses" means classification of use of water for different purposes such as drinking and domestic, industrial or commercial, irrigation, power, agriculture and environmental, etc, and includes such other purposes as may be prescribed;

(e)

"Cess" means an amount to be charged on lands benefited by flood protection and drainage work from owners/ lease holders of such lands;

(f)

"Chairperson" means the chairperson of Commission;

(g)

["Commission" means the Uttarakhand Water Resources Management and Regulatory Commission ;]

[Substituted by section 3 of Uttarakhand Act no. 3 of 2016.]

(h)

"Entitlement" Means any authorization by the [Commission]

[Substituted words 'commission' by section 2 of Act no. 03 of 2016 of the Uttarakhand.]

to use the water for the specified purpose under this Act;

(i)

"Groundwater" means the water, which exists in an aquifer below the surface of the ground at any particular location, regardless of the geological structure in which it is stationary or moving and includes all groundwater reservoirs;

(j)

"Ground water entitlement" means and individual or bulk water entitlement to a volumetric quantity of water to be extracted from a tube well, bore well or other well or by any other means of extraction of ground water, or a group or field or wells duly and legally permitted, registered and constructed in accordance with standards prescribed by the [Commission]

[Substituted words 'commission' by section 2 of Act no. 03 of 2016 of the Uttarakhand.]

;

(k)

"Individual Water Entitlement" means any authorization by the Commission to use the water for specified purpose under this Act other than bulk water entitlement;

(l)

"Integrated State Water Plan" means a water plan for use of both surface and ground water duly approved by the [Commission]

[Substituted words 'commission' by section 2 of Act no. 03 of 2016 of the Uttarakhand.]

;

(m)

"License" means license granted by the Commission in such manner as may be prescribed;

(n)

"Licensee" means an individual / organization which maintains the water supply system, supplies water and collects the water tariff or which owns tube well/ diesel pumping set or uses ground water for any purpose including domestic use by exploiting groundwater;

(o)

"Member" Means a member of the Commission;

(p)

"Notified area" means a unit / Nyay Panchayat falling under over exploited or critical category;

(q)

"Prescribed Commission" means any Commission at various levels within the water resources management system that has been duly authorized by the Commission to determine and declare, on an annual or seasonal basis, the quota or amount of water available within a system for use as un allocated percentage of the entitlements duly issued by the Commission;

(r)

"Project level entity" means a group of all water user entities from a common supply source within a water resources project;

(s)

"Quota" means a volumetric quantity of water made available to an entitlement holder, which is derived by multiplying an entitlement by annual or seasonal allocation percentage;

(t)

"Regulation" means regulation made by the Commission under this Act;

(u)

"Selection Committee" means a selection committee constituted under section 6 of Chapter - II;

(v)

"Sewerage" means a system of collection of waste water from a community from its houses, institutions, industry and public places; the pumping treatment and disposal of such waste water, its effluent sludge, gas and other end products;

(w)

"State Water Policy" means the State Water Policy Execute to this Act;

(x)

"Tariff" Means a specific charge or set of charges applicable for providing water supply;

(y)

"Utility" means any water user entity such as agency, company, person, director etc. responsible for the management, treatment and distribution of water agriculture, horticulture, domestic, industries municipal / rural water supplies and for any other purpose and may be notified by the Commission.

(aa)

"User of ground water" means any person/persons and the person or persons an institution including a company or an establishment, whether government or private who or which own or use groundwater for any purpose including domestic use made either on a personal or community basis.

(ab)

"water" Means all surface and sub surface water accruing in river or any part of a river, stream, lake, natural collection of water in aquifers or natural drainage channel, water recycled after treatment of sewage and industrial waste etc., that is to say water supplies and sewerage, irrigation and canals, drainage and embankment, water storage and water power and ground water or, water in all states (Solid, liquid or vapour) in storage or in flux within hydrologic cycle, that is necessary for a sustainable quality of life, as well as for sustaining the natural environment;

(ac)

"Water User Entity" means any water user entity including water users Association, utility, Industrial, users, Association or any other group or entitlement;

(ad)

"Water availability" means availability of surface or ground water for use for a period or season for year which is rechargeable;

(ae)

"Water Quality" means accessed water which is safe for consumption for the purpose for which it is supplied as per norms set by Bureau of Indian Standards.

Chapter - II Establishment of Commission

3.

Establishment of Commission.

- [(1) The State Government shall by notification, establish a Commission within three months from the date of commencement of this Act, to be known as the Uttarakhand Water Resources Management and Regulatory Commission who shall exercise the powers conferred on, and to perform the functions assigned to him under this Act.]

[Substituted by section 4 of Uttarakhand Act no. 03 of 2016.]

(2)

The Commission shall be a body corporate.

(3)

The head office of the Commission shall be at Dehradun.

(4)

[The Commission shall consist of a Chairperson and such number of Members not exceeding two as may be notified by the State Government.]

[Substituted by section 4 of Uttarakhand Act no. 03 of 2016.]

(5)

The Chairperson and the Member of the Commission shall be appointed by the State Government on the recommendation of the Selection Committee referred to in Section 6.

4.

Qualification for appointment of Chairperson and other member of Commission.

(1)

Only such person shall be appointed as the Chairperson or Member who possesses the qualifications mentioned hereunder:-

(a)

Chairperson - The Chairperson shall be a person having bachelor's degree of any recognized University/institute with administrative experience of not less than 25 years, and must have held the post of Chief Secretary of the State Government or the Secretary of the Government of India or any post equivalent thereto and has experience of department related to water resources.

(b)

[The Member of the Commission shall be persons of ability, integrity and standing who have adequate knowledge of or experience in, or have shown capacity in dealing with, problems relation to engineering, finance, commerce, economics, law or management;

[Substituted by section 5 of Uttarakhand Act no. 03 of 2016.]

Provided that at least one Member shall be from amongst the member who are either holding or have held a post not below the rank of Chief Engineer or equivalent and having qualification and at least 25 years of experience in the field of Hydropower Engineering.]

(2)

The Chairperson or any Member of the Commission shall not hold any other office during his / her tenure as such.

(3)

The Chairperson shall be the Chief Executive Officer of the Commission.

(4)

Where the chairperson is unable to discharge his functions owing to absence, illness, death, resignation or any other cause or where any vacancy occurs in the office of the chairperson, any Member nominated by the Chairperson on his behalf and, in the absence of such nomination or where there is no Chairperson any member chosen by the member present among themselves, shall exercise the power and discharge the duties of Chairperson.

5.

Disqualification for being the Chairperson or a Member.

- A person shall be disqualified for appointment as the Chairperson or a member, if he :-

(a)

has been adjudged as insolvent ; or

(b)

has become physically or mentally incapable of acting : or

(c)

has been convicted and sentenced to imprisonment for any offence involving moral turpitude; or

(d)

has acquired such financial or other interest as is likely to affect his functions as the Chairperson or a Member; or

(e)

has so abused his position as to render his continuance in office prejudicial to the public interest ; or

(f)

is a Member of Parliament, or of any State Legislature or any local Commission or is a candidate for election thereto; or

(g)

is an active member of a political party or holds a post therein.

6.

Constitution and function of the selection committee.

- [(1) The State Government shall, by notification, constitute a Selection Committee, for the purposes of making appointments of the Chairperson and Members under sub-section (5) of section 3. The Committee shall consist of :-

(a)

the Chief Secretary, Government of Uttarakhand;

ex-officio Chairman

(b)

the Chairman, Central Water Commission or his

nominee who shall be the member of the Central Water Commission;

ex-officio Member

(c)

the Principal Secretary/secretary as may be

Finance , Government of Uttarakhand;

ex-officio Member

(d)

the Director, Indian Institute of Management,

Kashipur;

ex-officio Member

(e)

the Principal Secretary/Secretary as may be

Irrigation, Government of Uttarakhand;

ex-officio Member- Secretary.]

[Substituted by section 6 of Uttarakhand Act no. 03 of 2016.]

(2)

The State Government shall within one month from the date of occurrence of any vacancy by reason of death,

resignation or removal and six months before the superannuation or end of tenure of the Chairperson of the Member, make a reference to the selection committee for filling up to vacancy.

(3)

The Selection committee while making selection of the Chairperson and the Members, shall have due regard to performance record, ability, integrity, character qualifications and experience of the person proposed to be selected as Chairperson or other Member as the case may be.

(4)

The Selection committee shall finalize the selection of the Member within two months from the date on which the reference is made to it.

(5)

The Selection committee shall recommend a panel of three names for every vacancy referred to it.

(6)

A person who is considered for selection as the Chairperson or a Member shall inform to the selection committee:-

(a)

of any office, employment or consultancy agreement or arrangement which the person or his relative has in his own name or in any firm, association of persons or body corporate, owned or otherwise controlled by any of them carrying on any of the following business:-

(i)

diversion of surface water, distribution of water, extraction of ground water or supply of water;

(ii)

manufacture, sale, lease, hire or otherwise supply of or dealing in machinery, plant equipment, apparatus or fitting related to water industry;

(iii)

any entity providing any professional services to any of the businesses referred to in clause (i) and (ii) above.

(b)

Such other details and information as may be prescribed by the selection committee.

(7)

The details received from the persons referred to in sub-section (6) shall be placed for consideration of the selection committee at the time of selection and recommendation of the person for appointment as the Chairperson or a Member.

(8)

The Chairperson and each Member shall, before taking charge of the office divest him self from the interest in the businesses mentioned in sub-section (6) as a condition of his or her appointment.

(9)

If a person to be appointed as the Chairperson or a Member holds any office under the State or Central Government or any public sector corporation or any Government body or is gainfully employed or engaged in service by any other person Government authorities, public or private sector or otherwise, he shall submit his resignation or take voluntary retirement from that service before joining the Commission.

(10)

So long as a person holds the office of the Chairperson or a Member for a period of two years after he ceases to be the Chairperson or a Member for any reason whatsoever, he shall not acquire, hold or maintain, directly or indirectly any office, employment or consultancy arrangement or any financial interest in any of the businesses mentioned in sub-section (6) and if he acquires any such interest involuntarily or by way of succession or testamentary disposition he will divest himself of the interest within a period of three months of such interest being acquired.

(11)

Before recommending any person, the selection committee shall satisfy itself that such person does not have any financial or other interest as referred to in sub-section (6) which is likely to affect prejudicially his function as the Chairperson or a Member.

(12)

All decisions of the Selection committee shall be by a majority.

(13)

The procedure for selection and appointment of the Chairperson and the Member shall be laid down by the State

Government.

(14)

No appointment of the Chairperson or a Member shall be invalid merely by reason of any vacancy in the selection committee.

7.

Terms of Office and conditions of service of the Chairperson.

(1)

The Chairperson of a Member shall hold office from a term of five years from the date he enters upon his office :
Provided that, the Chairperson or a Member may be re-appointed but not for more than two consecutive terms :
Provided further that the Chairperson or a Member shall not hold office after he has attained the age of seventy years.

(2)

The Chairperson or any Member may relinquish his office at any time, by giving in writing to the Governor a notice of one month or may be removed from his office.

(3)

The Chairperson shall, before entering upon his office, make and subscribe and oath of office and secrecy before the Government or any other person nominated by him and every member before the Chairperson in such form as may be prescribed.

(4)

The salary and allowance payable to, and other terms and conditions of the Chairperson or the Members shall be such as may be prescribed.

(5)

The salary, allowances and other conditions of services of the Chairperson and the Member shall not be varied to their disadvantage after appointment.

(6)

The Chairperson or a Member Ceasing to hold office as such shall not --

(a)

Be eligible for further employment under the state Government for a period of two years from the date he ceases to hold such office except with the permission of State Government;

(b)

Accept any commercial employment for a period of two years from the date he ceases hold such offices; and

(c)

Represent any person before the Commission in any manner.

Explanation. - for the purposes of the sub- section -

(i)

"Employment under the State Government" includes employment under a local body or any other Commission within the territory of India under the control of any State Government or under any corporation or society owned or controlled by State Government.

(ii)

"Commercial Employment" means employment in any Capacity under or agency of, a person engaged in commercial, industrial or financial business in the water resources related industry and includes also a director of a company or partner of a firm and it also includes setting up practice either independently or as partner of a firm or as an advisor or a consultant.

8.

Removal of the Chairperson or a member.

(1)

Subject to the provision of sub-section (2), Chairperson or any Member shall only be removed from his office by the State Government on the ground of proved misconduct after the panel or three enquiry officers appointed from the officers equivalent to Secretary of Government for this purpose on reference being made to them by the State Government, has on inquiry, held by the panel and in consultation with the leader of opposition reported that the Chairperson or the Member ought on any such ground to be removed.

(2)

Notwithstanding anything contained in sub-section (1), the State Government may, by order, remove a member from his office if he becomes subject to any disqualification specified in section 5.

(3)

Notwithstanding anything contained in sub-section (2), the Chairperson or a Member shall be removed from his office on the ground specified in clause (b), clause (d) or clause (e) of section 5 unless the enquiry officer on a reference being made to him this behalf by the State Government, his on an inquiry, held by him in accordance with the procedure specified in this behalf by the Chief Justice or such judge, reported that the member ought on such grounds to be removed.

(4)

The State Government shall pass suitable order in accordance with the report referred to in sub-section (1) or sub-section (3), as the case may be, and the final decision of the State Government shall be communicated to the Chairperson or other Member concerned within a period of 30 days a receipt of such report.

9.

Power of State Government to depute officers and employees to the Commission and their Service conditions.

(1)

The Commission may appoint a Secretary to exercise and perform such duties, under the control of the Chairperson, as may be specified by regulation.

(2)

[The Commission shall obtain necessary information from the concerned Departments of the State Government. The Commission may appoint such number of officers and employees as in considers necessary for the performance of its duties and functions. Determination of numbers of officers and employees in Commission after the approval state Government.]

[Substituted by section 7 of Uttrakhand Act no 03 of 2016.]

(3)

The Salaries and allowance payable to and other conditions of service of the Secretary, officers and other employees of the Commission shall be such as may be determined by State Government from time to time.

(4)

Save as otherwise provided in the section, the terms and conditions of services of employees on deputation to the Commission shall not be less advantageous than those applicable to them immediately before deputation and shall not be varied to their disadvantage.

(5)

The State Government shall appoint any Government officer or employee on deputation to the Commission on the proposal made by the Commission in this regard.

(6)

The period of deputation of any such officer or employee to the Commission shall be three years except when any such person is required to be repatriated on the grounds, such as promotion, reversion, termination or superannuation or any other reason of deputation, he shall stand repatriated to service under the State Government :

Provided that during the period of such deputation all matter relating to the pay, leave, allowances, retirement, pension, provident fund and other conditions of service of the employee on deputation shall be regulated by the Uttarakhand Civil Services Rules or such other rules as may, from time to time, be made by the State Government.

10.

Proceedings of the Commission.

(1)

The Commission shall meet at such time and place within the State as the Chairperson may think fit and shall observe such rules of procedure in transaction of business at its meetings (including the quorum at its meetings) as may the determined by regulations.

(2)

The Chairperson or if he is unable to attend a meeting of the Commission, a member nominated by the Chairperson in this behalf and, in the absence of such nomination or where there is no Chairperson, any Member chosen by the Members present from among themselves, shall preside at the Meeting.

(3)

All matters which come up before the Commission shall be decided by a majority of votes of the Members present and voting and in the event of an equality of votes, the Chairperson or person presiding shall have the right to exercise a second or casting vote.

(4)

All decisions, directions and orders of the Commission shall be in writing supported by reason and shall be available for inspection by any person and copies of the same shall also be made available in such manner as the Commission may determine.

(5)

The Commission shall regulate its own procedure.

(6)

All orders and decisions of the Commission shall be authenticated by the Secretary or any other officer of the Commission duly authorized by the Secretary in this behalf.

11.

Vacancies etc not to invalidate act or proceeding.

- No act or proceedings of the Commission shall be questioned or shall be invalidate merely on the ground of existence of any vacancy or defect in the constitution of the Commission.

Chapter - III Powers, Functions and Duties of the Commission

12.

Powers and function of the Commission.

- The Commission shall exercise the following powers and perform the following functions; namely :-

(a)

[to approve the Integrated State Water Plan/ Basin Plans developed by Department of the State Government to ensure sustainable management of water resources within the parameters laid down by State Water Policy as amended from time to time;]

[Substituted by section 8 of Uttrakhand Act no 03 of 2016.]

(b)

to determine the allocation and distribution of entitlements for various category of use of water at utility, project level and also between various water user entity within the parameters laid down by the State Water Policy on such terms and conditions as may be prescribed for such a distribution;

(c)

to lay down the criteria for modification in the entitlements for the diversion, storage and use of surface and ground water of the State;

(d)

to review and accord clearance to new water resources projects proposed at the river basin/ sub-basin level by the concerned entity ensuring that the proposal is in conformity with Integrated State Water Plan specially with respect to the water allocation of each entity, that is economically, hydro-geologically and environmentally viable;

(e)

to establish a system of enforcement, monitoring and measurement of the entitlements for the use of water to ensure that the actual use of water, both in quantity and type of use are in compliance with the entitlements as issued by the Commission;

(f)

to monitor conservation of environment and facilitate the development of a framework for the preservation and protection of the quality of surface and ground water resources as per establishment norms and standards;

(g)

to withdraw the entitlement or take any action as deemed necessary in case any water user entity pollutes or causes to pollute any surface or ground water source of water and thereby infringes the maintenance of established norms and standards for water quality;

(h)

to impose penalty on any organization or agency, whether Government or private, any individual or a group of individuals who change, alters or cause to change or later the status of any surface or ground water resources without the specific sanction or approval of the Commission;

- (i)
to periodically review the entitlement as and when considered necessary;
- (j)
to register and monitor bulk water entitlement by the Commission or its duly authorized representatives;
- (k)
to promote competition, efficiency and economy in the activities of the water and waste water sector to minimize wastage of water;
- (l)
to promote better water management techniques;
- (m)
to enforce rain water harvesting to augment ground water recharge.
- (n)
to fix and regulate a water tariff system and charges for the use of water after due consideration to all costs including administration, operation maintenance, depreciation and subsidies;
- (o)
to review and revise the tariff/ water charges periodically;
- (p)
to determine and fix the rate of cess to be charged from owner of lands benefited by flood protection and drainage works implemented under new projects;
- (q)
to enforce the decision or orders issued under this Act by a suitable agency authorized by the Commission or empower to any existing agency for this purpose;
- (r)
to aid and advise the State Government on any matter referred to the Commission by the State Government.

13.

General Policies of the Commission.

- (1)
The Commission shall work within the framework of the State Water Policy.
- (2)
The Commission shall promote and monitor sound water conservation and management practices throughout the State in accordance with State Water Policy through the implementing agencies in the State.
- (3)
The Commission shall support and aid the enhancement and preservation of water quality within the State in close coordination with the relevant State agencies.

14.

Power of the Commission.

- (1)
The Commission shall, while performing its adjudicatory functions under this Act, have all the powers of a civil court trying a suit in respect of the following matters, namely:-
 - (a)
summoning and enforcing the attendance of any person and examining him on oath;
 - (b)
requiring this discovery and production of any document;
 - (c)
receiving evidence on affidavits;
 - (d)
requisitioning any public record or copy thereof from any court;
 - (e)
issuing Commission for the examination of witnesses and documents; and
 - (f)
such other matters any may be prescribed.

(2)

Any person or class of persons or agency or utility shall :-

(a)

Produce before an officer of the Commission such books accounts or other document relating to any matter concerning water transference, distribution and consumption of water, which may be required by the Commission for the purpose of this Act; and

(b)

Furnish to any officer so specified such information in his possession, power or control as may be required by the Commission for the purposes of discharge of its functions under this Act.

(3)

Where, during any inquiry or proceeding under this Act, the Commission has any ground to believe that any books or documents of, or relating to, any unit or person to which such inquiry is being make or proceeding relates, or which the owner of such unit may be required to produce in such inquiry or proceeding, are being, or may be, destroyed, by a written order, authorize any officer of the Commission to exercise powers of entry, search and seizure as may be exercised by an Inspector under section 240 and 240-A of the Companies Act, 1956.

(4)

The Commission may, in the discharge of its functions, consult persons or group of person affected or likely to be affected by the decisions of the Commission.

(5)

Every person to whom a notice may be issued this Act by the Commission shall furnish such information, details, books accounts and other documents, as may be specified in such notice.

15.

Powers to issue direction.

- The State Government may from time to time issue direction not inconsistent with this Act.

16.

Water supply and overall performance standards.

- The Commission may from time to time -

(a)

Determine such standards of overall performance in respect of water supply services and promotion of the efficient use of water by consumers, as in its opinion, are economical and ought to be achieved by such licensees and different standards may be determined for different licensees; and

(b)

Publish the standards so determined in such form and in such manner as the Commission may consider proper.

17.

Information with respect to levels of performance.

(1)

On or before such date in each year as may be specified by the Commission, every licensee shall furnish to the Commission the level of performance achieved by the licensee for each standard determined under section 16.

(2)

The Commission may publish for general information the information received by it under sub-section (1), which it feels necessary.

18.

Restriction on disclosure of information.

(1)

Save as otherwise provided in this Act, information in respect of any person or business which, has been furnished to, or obtained by, the Commission under without the consent of the concerned person or the person in -charge of the business :

Provided that such information my be disclosed to the Central Government, the State Government, Accountant General of the State or a person who requires it in connection with the discharge of statutory duties.

(2)

The restriction contained in sub-section (1) shall not apply to the information related to tariff.

(3)

Information in possession of the Commission shall be kept confidential and may be furnished to any person or agency only with the permission of the Commission.

Chapter - IV Arbitration, offences and penalties

19.

Arbitration.

- Any dispute or difference arising between licensees or user in respect of matters specified in sub-section (2) of section 35 may be referred to the Commission for arbitration. The Commission may proceed to act as Arbitrator or nominate an Arbitrator to adjudicate and settle the dispute. The Arbitrator shall follow the Procedure as Laid down in Arbitration and Conciliation Act, 1996.

20.

Offences and penalties.

(1)

Whoever :-

(a)

In contravention of the provision of this Act, the rules or the regulations made under this Act, engaged in the business of distribution or supply of water; or

(b)

Refuses or fails without reasonable causes to comply with, or give effect to any direction, order or requirement made under this Act;

shall be guilty of an offence under this Act.

(2)

Any person guilty of an offence under clause (a) of sub-section (1) shall be punished with imprisonment which may extend to one year or with fine which may extend to rupees one Lakh or both and a further penalty of rupees twenty thousand for each day after the first offence during which the offence continues.

(3)

Any person guilty of an offence under clause (b) of sub-section (1) shall be punished with imprisonment which may extend to Six Months or with fine which may extend to rupees one Lakh or both and a further penalty which may extend to rupees five thousand for each day after first offence during which the offence continues.

21.

Offence by user.

(1)

A person make offence under this Act, if user, than in the time of offence together the user for the dealing of his business, the incharge of user and responsible for that, the every person shall also be culprit for offence and shall be responsible for the proceeding against him and shall be punishable accordingly :

Provided that any persons shall not be punishable if he proved that such offence shall be made without his knowledge or he take reasonable quick action for the prevent of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where any offence made by user under this Act and it is proved that the offence made with the consent or the silence acceptance by any Director, Manager, Secretary or other Officer or such offence made with the reason of their negligence, than such Director, Manager, Secretary or Officer shall also be deemed culprit of offence and shall be responsible for the proceeding against him and shall be punishable accordingly.

22.

Compounding of Offences.

(1)

The Commission may, for reasons to be recorded in writing, accept from any person who has committed or is reasonably suspected of having committed an offence punishable under this Act, a sum of money not exceeding rupees One Lakh by way of composition fee and compound the offence.

(2)

On the composition of any offence under sub-section (1), no proceeding shall be taken or continued against the person concerned in respect of such offence, and if any proceedings in respect of the offence have already been instituted

against him in any court, the composition shall have the effect of the acquittal.

23.

Cognizance of offences.

(1)

No court shall take cognizance of any offence under this Act except on a complaint in writing of an officer authorized in this behalf by the Commission.

(2)

An offence under this Act shall be tried by a court not lower in rank other than that of the Additional Chief Judicial Magistrate who has jurisdiction.

24.

Penalties and proceedings not to prejudice other actions.

- All proceedings against a person under this Act shall be in addition to and not in derogation of any proceeding or action under any other law for the time being in force.

Chapter - V Accounts, Audit and Report

25.

State Government to the Commission.

(1)

The State Government shall after due appropriation made by the State Legislature by law in this behalf, pay to the Commission by way of grant such sums of money as the State Government may think fit for being utilized for the purposes of this Act :

Provided that expenditure in respect of Salaries and allowance of the Chairperson and other Members shall be charged on the Consolidated Fund of the State.

(2)

The Commission may spend such sums as it thinks fit for performing the function under this Act, and such sums shall be treated as expenditure of the Commission.

(3)

The fees or fine or moneys thus received in Commission are kept in the public account of the state.

26.

Accounts and audit.

(1)

The Commission shall maintain proper account and other relevant records and shall cause to be prepared an annual statement of accounts in such form as may be prescribed by the Government in consultation with Accountant General.

(2)

The Accounts of the Commission shall be audited by the Accountant General, Uttarakhand, or any officer authorized by him in this behalf at such intervals as may be specified by Government and any expenditure incurred in connection with such audit shall be payable by the Commission to the Accountant General.

(3)

The Copies of annual Statement of accounts of the Commission together with the audit report thereon shall be forwarded to the State Government.

(4)

A Copy of the annual Statement of accounts of the Commission together with the audit report thereon received by the State Government under sub-section (3) shall be laid before each house of the State Legislature.

27.

Annual report of the Commission.

(1)

The Commission shall prepare, in such form and at such time, for each financial year, as may be prescribed, its annual report, giving a full account of its activities during the previous financial year and copies thereof shall be forwarded to the State Government.

(2)

The State Government shall cause the annual report to be laid, as soon as may be, after it is received, before the State Legislature.

Chapter - VI Miscellaneous

28.

Amount recoverable as arrears of land revenue.

- Any amount payable under this Act, except an amount payable under this Chapter may, on a Certificate of the Secretary of the Commission, be recovered as arrears of land revenue.

29.

Application of fines and Charges.

- The Commission while imposing any fine or charges under this Act may direct that the whole or any part thereof shall be applied in or towards payment of the cost of the proceedings to a party.

30.

Protection of Action of good faith.

- No suit, prosecution of other Legal proceedings shall lie against any person for anything which is done in good faith or intended to be done in pursuance of the provision of this Act or the rules or the regulations or the orders made thereunder.

31.

Bar of Jurisdiction.

- No order of proceeding made under this Act shall be appealable except as provided in this Act and no civil court shall have jurisdiction in respect of any matter which the Commission or any other Commission is empowered by or under this Act to decide.

32.

Proceeding before the Commission to be judicial proceedings.

- All proceeding before the Commission shall be deemed to be judicial proceedings within the meaning of sections 193, 219 and 228 of the Indian Penal Code and the Commission shall be deemed to be a civil court for the purposes of section 195 and Chapter XXVI of the code of Criminal Procedures, 1973.

33.

Chairperson, Member and Staff of the Commission to be public servants.

- The Chairperson, Members and other employee of the Commission shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code.

34.

Power to make rules.

(1)

The State Government may, by notification, make rules for carrying out the purposes of this Act.

(2)

In Particular, and without prejudice to the generality of the power contained in sub-section (1), such rules may provide for all or any of the following matters, namely:-

(a)

the procedure to be adopted by the selection committee for selection and appointment of the Chairperson and the Members;

(b)

the form and manner in which the accounts of the Commission shall be maintained; and

(c)

any other matter which is required to be or may be prescribed.

35.

Power to make regulation.

(1)

The Commission may make regulation not inconsistent with this Act or the rules made there under for the efficient performance of its functions under this Act.

(2)

In particular, and without prejudice to the generality of the provision of sub section (1), such regulations may provide for all or any of the following matters, namely:-

(a)

the Administration of the affairs of the in the exercise of its functions;

(b)

determination of the function to be assigned to licensees and other persons involved in the purchase, distribution or supply of water, the manner in which such function shall be discharged and the procedures to be adopted and enforced in regard to the operation and maintenance of water supply system;

(c)

the procedure and the conditions for the grant of licenses, the particulars and documents to be made available by the persons applying for licenses, the standards and general conditions subject to which the license shall be granted, the grant of exemption from the requirement of a license, the revocation and amendment of licenses and the effect thereof and all matters related thereto;

(d)

the duties, power, rights and obligation of licensees;

(e)

the particulars to be furnished, and the form and manner for furnishing information, particulars, documents, accounts and books by the persons involved in the water distribution and supply of use of water.

(f)

the terms and conditions and the procedure for determination of revenues and tariffs;

(g)

the determination of the standard of performance of the persons involved in the distribution of supply of water in the State;

(h)

the fees and charges payable by the licensee and the consumer of water.

(i)

the amount of fine and penalties to be imposed for violation of the provisions of this Act including the method and manner of imposition of fines and penalties and collection of the same;

(j)

any other which is required to be, or may be, provided by regulations.

36.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of the Act, the Government may, by order published in the Government Gazette, make such provisions not inconsistent with the provisions of this Act, as may appear to be necessary for removing the difficulty:

Provided that no order shall be made under this section after the expiry of two years from the date of commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before House of the State Legislature.

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